

		should at least plead the ultimate facts showing grounds for these defenses. The demurrer to this affirmative defense is sustained with leave for Defendant to bring a motion to amend when and if Defendant discovers facts sufficient to support a defense of laches, waiver, or estoppel. <i>Tenth Affirmative Defense for Failure to State a Claim for Punitive Damages</i> Here, Defendant alleges that “[t]he first amended complaint fails to state sufficient facts to constitute a valid claim for punitive or exemplary damages.” This is a legal conclusion only. Plaintiffs’ objection for failure to allege sufficient facts does not really apply to what is essentially a pleading issue. The demurrer to this affirmative defense is overruled. <i>Eleventh Affirmative Defense for Failure to Set Out Claims with Sufficient Particularity</i> Defendant alleges here that “Plaintiffs have failed to set out their claims with sufficient particularity to permit defendant Matthew Caldwell to raise all appropriate defenses and, thus, defendant Matthew Caldwell reserves the right to assert additional defenses as a factual basis for these claims or defenses becomes known.” (Bold added.) This is not really an affirmative defense but a reservation of potential defenses, so Plaintiffs’ failure to allege sufficient facts objection really does not make sense. The demurrer to this affirmative defense is overruled.
11.	2024-1441105 Vanasopha vs. Bearley	Case Management Conference, only.
12.	2025-1461619 Garcia vs. General Motors, LLC	Case Management Conference, only.